

Court No. - 3

Case :- WRIT - C No. - 39568 of 2023

Petitioner :- Julfekar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shams Uz Zaman

Counsel for Respondent :- C.S.C.,Ankit Prakash,Kartikeya Saran

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Sole grievance of the petitioner is that the recovery was being made without any final assessment order.

Sri Ankit Prakash, learned counsel appearing for the Electricity Department may take instructions in the matter.

Put up this case on 05.12.2023 as fresh.

Since we prima facie are satisfied that no final assessment order was passed, we provide that till the next date of listing, no coercive action shall be taken against the petitioner.

When the case is listed next, the name of Sri Ankit Prakash be shown as counsel for the Electricity Department in the cause list.

Order Date :- 17.11.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 39568 of 2023

Petitioner :- Julfekar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shams Uz Zaman

Counsel for Respondent :- C.S.C.,Ankit Prakash,Kartikeya Saran

Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

Shri Ankit Prakash, learned counsel for electricity department has prayed for an adjournment.

Put up this case as fresh on 10.01.2024.

Interim order, if granted earlier, is extended till the next date of listing.

Order Date :- 12.12.2023

Sharad/-

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

Court No. - 21

Case :- WRIT - C No. - 39568 of 2023

Petitioner :- Julfekar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shams Uz Zaman

Counsel for Respondent :- C.S.C.,Ankit Prakash,Kartikeya Saran

Hon'ble Manoj Kumar Gupta,Acting Chief Justice

Hon'ble Kshitij Shailendra,J.

1. As prayed by learned counsel for the respondent-Electricity Department, the case is adjourned for a week to enable the concerned Executive Engineer to examine, how the recovery could be made for any amount, when the procedure prescribed for making final assessment under the U.P. Electricity Supply Code, 2005 has not been followed.
2. Put up as fresh on **18.01.2024**.
3. In the meantime, no coercive action shall be taken against the petitioner.

(Kshitij Shailendra, J) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 10.1.2024

Ankit.

Court No. - 21

Case :- WRIT - C No. - 39568 of 2023

Petitioner :- Julfekar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shams Uz Zaman

Counsel for Respondent :- C.S.C.,Ankit Prakash,Kartikeya Saran

Hon'ble Manoj Kumar Gupta,Acting Chief Justice

Hon'ble Kshitij Shailendra,J.

1. The petitioner has challenged the demand notice dated 08.12.2022 issued by respondent no.4 for recovery of electricity dues.
2. Shri Ankit Prakash, learned counsel for the Electricity Department states that the impugned notice has been withdrawn and a communication in this regard has been sent to District Magistrate on 10.01.2024.
3. A communication received by learned counsel from the Electricity Department in this behalf has been shown to us. He has also produced before us a fresh notice issued on 16.01.2024 to the petitioner seeking his explanation to facilitate passing of fresh order.
4. Consequently, nothing further survives in the instant matter.
5. The petition stands **disposed of** accordingly.

(Kshitij Shailendra, J) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 18.1.2024

Ankit.